

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE

Judicial Department

Writ Petition No.22681 of 2017

Muhammad Kashif

Versus

Defence Housing Authority etc

Sr. No. Of Order/ Proceeding	Date of Order	Order with signatures of Judge, and that of parties of counsel, where necessary.
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07.10.2020 Mr. Azam Jan Muhammad, Advocate for petitioner.
Barrister Khurram Raza, Advocate for respondent
No.1/ DHA.

Brief facts necessary for the adjudication of this *lis* are that by filing a suit for cancellation of sale deed No.8587 dated 10.11.2003 (executed in favour of respondent/defendant No.1) with permanent injunction against the respondent No.1/defendant, the petitioner/plaintiff claimed to be owner in possession of land measuring 55-Kanals in Khewat No. 373, Khatoni Number 489, situated in village Karbath, Lahore Cantt on the basis of sale deed No. 12269 dated 24.05.2014 executed in his favour and mutation No. 1 entered/sanctioned on 18.06.2014. The respondent No.1/ defendant filed an application under Order 7 Rule 11 C.P.C for rejection of plaint which was dismissed by the learned trial court vide order dated 12.01.2016. Feeling aggrieved, the respondent

No.1/defendant preferred a revision petition and the learned Additional District Judge accepted the revision petition vide judgment dated 04.03.2017. Being dissatisfied, the petitioner/plaintiff has filed the instant writ petition and challenged the validity of the judgment passed by the learned revisional court.

2. Learned counsel for the petitioner/plaintiff mainly argues that while exercising the jurisdiction under Order 7 Rule 11 CPC, the court has to confine itself to the averments made in the plaint and it is not supposed to travel beyond the contents of plaint and also not to consider other material while by relying on the judgments reported as S.M. Sham Ahmad Zaidi through Legal Heirs Vs Malik Hassan Ali Khan (Moin) through Legal Heirs (2002 SCMR 338) and Pakistan Agricultural Storage and Services Corporation Ltd Vs Mian Abdul Latif and others (PLD 2008 SC 371) etc, learned counsel for the petitioner/plaintiff argues in rebuttal that object of Order 7 Rule 11 CPC is primarily to save the parties from rigours of frivolous litigation at the very inception of the proceedings and besides averments made in the plaint, other materials available on record which on its own strength is legally sufficient to completely refute the claim of the plaintiff can also be looked into for the purpose of

rejection of plaint. I have heard the arguments of learned counsels for the parties and perused the available record as well as have minutely gone through the impugned judgment.

3. Perusal of record reveals that although the defendant/respondent No.1 purchased land measuring 109 Kanals and 05-Marlas in Khasra Nos.1005 & 1006 from M/S Mohammad Sadiq, Rehmat Ali & Allah Rakha sons of Ghulam Mohammad through Sale Deed No.8587 dated 10.11.2003 but concerned revenue authorities failed to enter/sanction the purchased land in revenue record through mutation, in connivance with the sellers rather with collaboration of the concerned revenue authorities and in violation of Section 48(2) of West Pakistan Land Revenue Act, 1967. It is well settled by now that the mutation is not a document of title and meant for fiscal purpose only. Reference is made to case reported as Ghulam Sarwar (deceased) through LRs and others Vs Ghulam Sakina (2019 SCMR 567).

After settlement operation, the said khasras No.1005 & 1006 were changed to Khasra Nos.1057 & 1058. The abovementioned sellers & present buyer/plaintiff fraudulently obtained the “Fard” of sold land and executed sale deed No.12269 dated 24.05.2014 and

mutated the same by the concerned revenue authorities through mutation No.1 dated 18.06.2014 and filed suit on 27.06.2014 wherein the defendant/respondent No.1 filed application under Order 7 Rule 11 of CPC. After the purchase of disputed land, the defendant/respondent No.1 took the possession of disputed land on 09.02.2003, completed the development works with 59 plots and already allotted 33 plots to the different allottees. The stance of the plaintiff/petitioner regarding the purchase of land with possession while the disputed land was already under the possession of defendant/respondent No.1 which were doing development activities is not believable rather the sellers & present buyer have simply committed fraud with the defendant/respondent No.1 by collaborating with and in connivance with the concerned revenue authorities. On the complaint of defendant/respondent No.1, a detailed enquiry has been already been completed by the revenue officer wherein the matter has not only been referred to the Anti-Corruption Establishment but proceedings are initiated against the delinquent employees/officers under PEEDA Act, 2006 for committing criminal breach of trust. Hence by invoking provisions of law especially, Order 7 Rule 11 of CPC, the learned revisional court rejected the plaint on the principle that as soon as the cause for

rejection appears, the plaint should be rejected straightaway and such suit should be taken off the file at its very inception and defendant be relieved of vexatious litigation by discussing the averments of plaint alongwith other materials available on the record which on its own strength are legally sufficient to completely refute the claim of the plaintiff/petitioner.

4. Learned counsel for petitioner/plaintiff has failed to point out legal infirmity in the impugned judgment and decree passed by the learned revisional court, therefore, this petition is **dismissed**.

(MASUD ABID NAQVI)
JUDGE

Approved for reporting.

JUDGE

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